

Regarding the severance communications Defendant requests to strike some allegations regarding the proposed severance agreement and how the language included within it was false and Plaintiff thought that something was off about the agreement. (Comp. ¶¶93-99, 102, 104, 107.)

As an initial matter, the Court notes that Defendant did not request striking the summary of the proposed severance agreement including the amount offered in the settlement. (Comp. ¶91.) Thus, much of the proposed agreement, including the amount and the claim that Plaintiff resigned as opposed to being laid off, are included in the complaint.

Defendant argues that these allegations are inadmissible under Evidence Code section 1152(a). Section 1152(a) makes evidence of a promise to furnish money to someone who has sustained loss or damage, as well as conduct or statements made in negotiation, “inadmissible to prove his or her liability for the loss or damage or any part of it.” These communications can be admissible for other purposes. (see, e.g. *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 396 (an offer to compromise can be admissible to prove the instrumentality of the tort); *Warner Constr. Corp. v. L.A.* (1970) 2 Cal.3d 285, 297, fn. 12 (a communication subject to section 1152 can be used to show that a party acted in good faith and to rebut defendant's claim that plaintiff failed to mitigate damages).)

Defendant argues that section 1152 applies to severance agreements. *Mangano v. Verity, Inc.*, (2009) 179 Cal.App.4th 217 held that a severance agreement is covered under section 1152 and thus, can be excluded from evidence at trial “for purposes of establishing liability.” (*Id.* at 222.) Nothing in *Mangano* addresses whether a severance agreement can be used for other purposes or whether it can be included in the complaint.

Defendant next argues that while *Mangano* addressed a motion in limine, it should apply here because “[t]he complaint's allegations are ““a judicial admission”” that concede ““the truth of [the] matter”” and have ““the effect of removing it from the issues.”” [Citation.]” (*Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 100.) Defendant’s argument misses the point in *Shirvanyan* that allegations in a complaint act as judicial admissions against the drafting party, not the opposing party.

In conclusion, Defendant has not convinced the Court that the proposed severance agreement allegations are barred for all purposes and thus, the Court finds that there is no reason to strike them from the complaint.

12. 9:00 AM CASE NUMBER: L23-04858
CASE NAME: DISCOVER BANK VS. GEMMA SAMBI
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment pursuant to Code of Civil Procedure section 664.6 on October 2, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to

Enter Stipulated Judgment after Default was set for hearing on March 16, 2026.

Background

The parties entered into that certain settlement agreement filed on January 19, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Gemma D Sambhi (“Defendant”) in the amount of \$2,712.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed October 2, 2025 (“Supporting Declaration”), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$3,372.45 plus costs, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶¶12-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$1,790.45 due and owing, plus costs of \$293.50. See Supporting Declaration, ¶¶9-10; see Memorandum of Costs filed October 2, 2025.

Analysis

Code of Civil Procedure section 664.6 provides a summary procedure for the enforcement of a settlement agreement by entering a judgment pursuant to the terms of the parties’ settlement. Code Civ. Proc. § 664.6; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 15.31. Where the parties stipulate to settle pending litigation either in writing or orally before the court, the court may, on motion, enter a judgment pursuant to the settlement terms. *Id.* The court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,790.45, plus costs of \$293.50, totaling \$2,083.95.
4. Plaintiff to submit a revised form of money judgment which appropriately designates Plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend Plaintiff’s name has been previously entered, leave is hereby granted and the operative complaint deemed so amended. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.
5. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.
6. The Court shall issue the order after hearing.